

**The State Death Penalty vs. Police Brutality: A Critical Examination of State-Enforced
Violence**

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Abstract

The state death penalty and police brutality are two forms of government-enforced violence operating under the appearance of justice. One occurs through sentencing, the other through street-level enforcement. Both involve legal systems that allow certain individuals to take life on behalf of the state. Although often viewed separately, they follow the same logic: punishment through authority and control. Racial and economic bias appear across both, especially in how force is applied and who receives the harshest outcomes. The public often views the death penalty as legal and justified, while describing police brutality as accidental or isolated. In reality, both reflect selective enforcement shaped by power, not fairness. The difference lies only in the setting. Lethal outcomes remain the same. Law and policy do not guarantee justice when the people enforcing them act without equal restraint or oversight. Statistics, historical trends, and legal data confirm that the system does not protect all people equally. Those in power are more likely to be protected than those they police or sentence. Legal outcomes and street-level violence must be understood as connected expressions of how authority is exercised in the United States.

Biography

Jesús Antonio-Oseguera Lopez Aguilar is a 19-year-old college student attending Salt Lake Community College. He was born in Salt Lake City, Utah, and raised between Santa Rosa, California, later moved to West Valley City, where he attended Hunter High School before transferring to Granger High School during his senior year. After graduating, he began his college journey in Spring 2025 at the age of 18 and is currently majoring in four fields: Criminal Justice, Political Science, Social and Behavioral Science, and Nursing Practice. He will be graduating in Fall 2025 with only three semesters completed. In addition to his studies, he spends time engineering websites, coding robots, and creating programs, but also enjoys being unapologetically reckless because he is still a teenager and refuses to pretend otherwise.

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Introduction

The state death penalty and police brutality are often discussed as separate issues in criminal justice, yet both reflect the same institutional practice: the use of lethal force under the protection of law. One occurs through courtroom sentencing, the other through street-level discretion, but both are ultimately decisions made by individuals who act with the authority to end lives. Although the legal system presents the death penalty as a measured form of justice and frames police brutality as misconduct or rare abuse, the outcomes remain consistent. Both practices disproportionately affect marginalized communities and rely on unequal enforcement shaped by power, not fairness. Public attention may shift from one to the other, but the structural patterns remain. The same government that punishes violence by civilians has authorized its own employees to carry it out without consistent accountability. This essay will examine how these two forms of state-enforced violence operate in parallel and will argue that the problem is not the law itself, but who enforces it, how it is applied, and who benefits from its protection.

Social Problem

Police brutality and the state death penalty represent two visible outcomes of institutional force that disproportionately affect low-income communities and people of color. Both rely on the power of state enforcement and operate under the justification of maintaining law and order. Police brutality refers to the excessive or unnecessary use of force by law enforcement, often without consequence. Victims are most frequently Black or Hispanic males, although any person interacting with the police may experience force based on perceived threat, location, or noncompliance. These encounters can lead to injury or death, yet prosecution of officers remains

rare. In contrast, the death penalty is portrayed as a legitimate legal punishment issued through due process, but it reflects similar disparities. Studies show that individuals convicted of killing white victims are significantly more likely to receive a death sentence, and that race, income, and access to legal defense remain key predictors of who ends up on death row. In both cases, state systems allow for permanent harm, whether by gunshot or gavel, with outcomes tied less to justice and more to the identities of those involved. These are not isolated incidents. They are institutional patterns protected by authority.

Causes and Reasoning of the Social Problem

Both police brutality and the state death penalty are products of historical systems designed to exert control over specific populations. Policing in the United States has roots in colonial militias and slave patrols, where enforcement served economic and racial interests rather than public safety. These patterns remain visible today in the form of over-policing in neighborhoods of color, where officers are more likely to use force, make arrests, or escalate encounters based on implicit bias. The justice system continues to protect these actions through legal doctrines such as qualified immunity, which shields officers from consequences even in fatal cases. Similarly, the death penalty has evolved from public executions to a process framed as rational punishment, yet the same social patterns of inequality remain embedded within its structure. Research has shown that the race of the victim strongly influences sentencing outcomes, and defendants with limited access to legal representation are far more likely to receive the death penalty. These practices are not accidental. They reflect the long-standing belief that punishment must be harsh, immediate, and targeted, particularly against those perceived as dangerous, disposable, or politically invisible. The logic is not public safety. It is control through fear and finality.

Effects of the Social Problem

The consequences of police brutality and the state death penalty extend beyond individual cases. They produce widespread distrust in legal institutions and erode the public's belief in fair and equal justice. When officers are rarely held accountable for excessive force, the message received by the public is that certain people are above the law. This undermines community cooperation, creates fear during police interactions, and can cause long-term psychological trauma, particularly in neighborhoods subjected to repeated force. Similarly, the continued use of the death penalty, especially when applied unevenly, sends a message that justice is not based on facts, but on status, race, and legal access. Studies have documented wrongful executions and decades-long appeals, revealing that the system cannot guarantee certainty, even in cases involving life and death. The combined effect of both practices is a justice system that appears more interested in punishment than fairness. It becomes difficult to convince the public that the law protects them when it frequently operates with bias, power, and violence. Communities internalize this message, and the resulting disconnect leads to social tension, protest, and fear, rather than safety or trust.

Conclusion

The state death penalty and police brutality are not separate problems. They are outcomes of the same enforcement-centered system that values control over fairness and power over protection. Both rely on the ability of the state to use lethal force without consistent accountability. Although they operate in different spaces, one in public streets and the other in courtrooms, they both reflect a deeper problem rooted in the belief that violence can be justified if it is carried out through official channels. Reform must begin with the recognition that

enforcement is not neutral. The law may appear fair on paper, but the individuals who enforce it, the methods used to apply it, and the people it chooses to protect ultimately shape the result. Ending qualified immunity, eliminating capital punishment, increasing prosecutorial oversight, and requiring full transparency in use-of-force incidents are necessary first steps. More importantly, the public must stop treating these practices as exceptions or unfortunate realities. They are not malfunctions of the system. They are the system. Until the structures that allow selective enforcement remain intact, justice in the United States will continue to be defined by authority, not equality.

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